

26NNCV02699 26NNCV02699

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Case Number: 26NNCV02699 Hearing Date: July 8, 2026 Dept: T

Isla Marout, et

al. vs. Hambik Bedroosian, et al.

Motion to

Strike Portions of Plaintiff's Complaint

Moving Party: Defendants Sidna

Pilikian and Hamp Khatchadourian

Responding Party: Plaintiff Isla Marout, a

minor, by and through her Guardian ad Litem Sarineh Danlian

Tentative Ruling: Grant

BACKGROUND

On April

8, 2026, Plaintiff Isla Marout, a minor, by and through her Guardian ad Litem

Sarineh Danlian ("Plaintiff") filed a complaint against Defendants Hambik

Bedroosian, Sidna

Pilikian, and Hamp Khatchadourian, alleging the following causes of action: (1)

negligence; and (2) strict liability. Plaintiff

alleges that on or about August 13, 2023, she was bitten by dog while lawfully located

near or at 650 West Dryden Street in Glendale, California (the

"Premises").

Defendants Sidna Pilikian and Hamp Khatchadourian

("Defendants") now move to strike punitive damages allegations from the

complaint.

Plaintiff opposes, and Defendants reply. The Court exercises its discretion to consider Plaintiff's untimely opposition.

(Cal. Rules of Court, rule 3.1300(d).)

MOVING

PARTY POSITION

Defendants seek to strike Paragraph numbers 19, 26, 31, 32, and 33 and Prayer for Relief number 4 from the complaint because Plaintiff has not alleged facts sufficient to support her punitive damages claim against Defendants under Civil Code section 3294, including ultimate facts establishing malice, oppression, or fraud.

OPPOSITION

In an untimely opposition, Plaintiff contends that the complaint adequately alleges in the form of conscious disregard of a known danger because, read as a whole, the complaint alleges that Defendants had actual prior knowledge of the dog's vicious tendencies. Plaintiff also argues that the negligence label of her sole cause of action against Defendants does not preclude recovery for punitive damages if the underlying facts establish their conscious disregard of a known danger. Plaintiff also seeks leave to amend without showing how it could amend the complaint to cure any pleadings defects found by the Court.

REPLY

Defendants

initially respond that the Court should disregard the untimely opposition filed by Plaintiff. Defendants further respond that the opposition fails to provide any sufficient ultimate facts to support a claim for punitive damages

ANALYSIS

I. Legal

Standard

A. Motion

to Strike

California

law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436(a).) Motions may also target pleadings or parts of pleadings which are not filed or drawn in conformity with applicable laws, rules or orders. (Code Civ. Proc. § 436(b).) A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see, also, City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 [motion may not be based on a party's declaration or factual representations made by counsel in the motion papers].) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion to strike may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.)

The

Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter "at any time in its discretion, and upon terms it deems proper." (Code Civ. Proc. § 436.)

1. Punitive Damages

Punitive

damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) "Malice" is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) "Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." [Citation.] (Lackner v. North (2006) 135 Cal.App.4th 1188, 1210.)

"As

amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute's reference to despicable conduct represents a "new substantive limitation on punitive damage awards." (Ibid.) Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as 'having the character of outrage frequently associated with crime.' [Citation.]" (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.) There also "must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff's interests and deliberately failed to avoid these consequences." (Flyer's Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

A

motion to strike punitive damages is properly granted where a plaintiff fails to state a prima facie claim for punitive damages, including well-pleaded allegations that defendant is guilty of oppression, fraud or malice. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.) "Mere negligence, even gross negligence, is not sufficient to justify such an award" for punitive damages." (Kendall Yacht Corp. v. United California Bank (1975) 50 Cal.App.3d 949, 958.) Moreover, conclusory allegations are not sufficient to support a claim for punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) Lastly, "[t]he mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

II. Meet
and Confer

Per the declaration of Defendants' counsel Ternier A. Wright, counsel for the parties met and conferred telephonically and were unable to resolve the issues underlying the instant motion. (Wright Decl. ¶¶ 4-6.)

III. Discussion

A.

Motion to

Strike

Defendants seek to strike the punitive damages allegations from the complaint, as set forth in their notice of motion. (See Compl. ¶¶ 19, 26, 31, 32, and 33; *id.*, Prayer for Relief ¶ 4.) In reviewing the complaint, the Court finds that Plaintiff failed to set forth well-pleaded factual allegations establishing that Defendants acted in conscious disregard of the safety of others by allowing the subject dog to remain on the Premises prior to the subject incident. (See *id.* ¶¶ 3, 4, 17, and 22) As Plaintiff instead relies on conclusions of fact to establish Defendants' knowledge of the subject dog's dangerous propensities and the risk of harm it posed to others, as well as Defendants' failure as landlords to exercise reasonable control over the dog given this knowledge, the malicious character of Defendants' conduct is not adequately supported by the complaint. (See *Turman*, *supra*, 191 Cal.App.4th at p. 63; cf. *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 899 ["Although the circumstances in a particular case may disclose similar wilful or wanton behavior in other forms, ordinarily, routine negligent or even reckless disobedience of traffic laws would not justify an award of punitive damages."].)

Thus, as Plaintiff failed to plead sufficient facts to support her claim for punitive damages against Defendants, and as Plaintiff failed to show that a reasonable possibility exists of amending the complaint to cure these deficiencies, the motion is granted without leave to amend.

RULING

Defendants

Sidna

Pilikian and Hamp Khatchadourian's Motion to Strike Portions of the Complaint is GRANTED without leave to amend.